

9.	2025-1524156 California Truckers Safety Association vs. Maruchan, Inc.	Defendant Maruchan, Inc.'s Demurrer to Plaintiff California Truckers Safety Association's First Amended Complaint is overruled. Defendant's request for judicial notice is granted. Plaintiff alleges that it insured Food Express, Inc. for workers' compensation liability; that Booker Washington was Food Express's employee; that Washington was injured in a slip-and-fall allegedly caused by Defendant's negligence; and that Plaintiff paid or became obligated to pay workers' compensation benefits on Washington's behalf. Plaintiff seeks reimbursement pursuant to Labor Code section 3852. These allegations are sufficient to state a statutory subrogation claim. Defendant does not principally challenge the sufficiency of the negligence allegations. Rather, Defendant contends Washington previously settled his personal injury action against Maruchan, released Defendant from liability, agreed to indemnify Defendant concerning liens and related claims, and thereafter dismissed his action with prejudice. Defendant therefore argues Plaintiff's present action is barred by claim preclusion, waiver, indemnity, and the prohibition against double recovery. The Court is not persuaded that the judicially noticeable materials establish those defenses as a matter of law at the pleading stage. Labor Code section 3852 authorizes an employer who has paid or become obligated to pay workers' compensation benefits to bring an action against the allegedly responsible third party. For purposes of this statutory scheme, the employer includes its workers' compensation insurer. The employer or carrier may seek reimbursement by filing an independent action against the third-party tortfeasor, intervening in the employee's action, or asserting a lien against the employee's recovery. Further, an employee's settlement of the employee's own claim does not necessarily extinguish the employer's statutory reimbursement right. <i>Van Nuis v. Los Angeles Soap Co.</i> (1973) 36 Cal.App.3d 222, 230, recognizes that where the employee settles his claim against the third party without the employer's consent, the employer may recover workers' compensation benefits by bringing an action against the third party under Labor Code section 3852. Defendant relies substantially on <i>Board of Administration v. Glover</i> (1983) 34 Cal.3d 906 and related authorities prohibiting double recovery and double liability. Those principles may ultimately provide Defendant with a defense if the evidence establishes that Maruchan settled Washington's claim without knowledge of Plaintiff's reimbursement interest and that the circumstances
----	---	---

otherwise bring the case within *Glover*. Defendant expressly asserts that it “did not actually know of benefits paid out to employee during litigation.”

That factual proposition, however, is not established by the FAC or by a matter of which the Court may take judicial notice for its truth. Plaintiff specifically disputes whether Maruchan knew or reasonably should have known of the workers’ compensation claim, whether Plaintiff received statutory notice of Washington’s lawsuit or settlement, whether Plaintiff consented to the settlement, and whether the settlement validly encompassed Plaintiff’s separate reimbursement interest. Those matters cannot be resolved adversely to Plaintiff on demurrer.

Indeed, the settlement provisions quoted by Defendant expressly address workers’ compensation liens and statutory notice obligations. Washington agreed to bear responsibility for workers’ compensation liens and agreed that he and his attorneys would be responsible for statutory obligations and notice duties concerning any concurrent workers’ compensation claim. The existence of those provisions does not establish Maruchan’s knowledge of Plaintiff’s particular claim, but it further demonstrates why the notice and knowledge issues cannot be resolved as a matter of law on this pleading.

Defendant’s claim-preclusion argument also does not establish a bar at this stage. Even assuming Washington’s dismissal with prejudice following settlement constitutes a sufficiently final adjudication for claim-preclusion purposes, Defendant has not established that Plaintiff was a party to Washington’s action or was in privity with Washington with respect to Plaintiff’s separate statutory reimbursement right. Plaintiff alleges and argues that it possesses its own statutory reimbursement interest under the workers’ compensation scheme.

Nor does Washington’s contractual release or indemnity undertaking itself extinguish Plaintiff’s claim. Plaintiff was not a signatory to Washington’s settlement agreement. The agreement may afford Maruchan contractual rights against Washington concerning indemnity or lien responsibility, but on the present record it does not establish that Plaintiff itself released, waived, or consented to extinguishment of its statutory claim. Similarly, waiver has not been established as a matter of law. Nothing in the FAC or judicially noticeable materials conclusively establishes that Plaintiff received statutory notice of Washington’s action or settlement and thereafter intentionally relinquished its reimbursement rights. Waiver may arise where an employer

		receives statutory notice and fails to assert its rights, but the existence of such notice is not established here. Accordingly, although Defendant may raise its settlement, notice, waiver, indemnity, double-recovery, and <i>Glover</i> defenses on a developed factual record, those defenses do not defeat Plaintiff's statutory subrogation claim as a matter of law on demurrer. The demurrer is therefore overruled. Plaintiff shall give notice.
10.	2023-1355916 Jahanbin vs. 1- C.S.I. Patrol Service Inc.	The unopposed general and special demurrer by Defendants C.S.I. Patrol Service, Inc. and January Rushan (collectively, "Defendants") to the Fourth Amended Complaint ("4thAC") filed by Plaintiff Khosrow Jahanbin ("Plaintiff") and each of the four causes of action alleged therein is sustained. Defendants' unopposed motion to strike is moot. <u>DEMURRER TO FOURTH AMENDED COMPLAINT</u> Defendants' request for the Court to take judicial notice of Plaintiff's 4thAC is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may "simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:53.1a.) CRC Rule 2.112 provides: Each separately stated cause of action, count, or defense must specifically state: (1) Its number (e.g., "first cause of action"); (2) Its nature (e.g., "for fraud"); (3) The party asserting it if more than one party is represented on the pleading (e.g., "by plaintiff Jones"); and (4) The party or parties to whom it is directed (e.g., "against defendant Smith"). Failure to comply with CRC 2.112 presumably renders a complaint subject to <i>motion to strike</i> or a <i>special demurrer for uncertainty</i>. (<i>Grappo v. McMills</i> (2017) 11 Cal.App.5th 996, 1014; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 6:113.) Like Plaintiff's First Amended Complaint, Second Amended Complaint, and first, second, and fifth through seventh causes of action in Plaintiff's Third Amended Complaint, Plaintiff's 4thAC does not comply with Rule 2.112. Although Plaintiff identifies four causes of action on the first page of the 4thAC, Plaintiff did not allege against which defendant(s) each cause of